

at stake.” (*Id.*, at p. 503; Footnote 7 omitted.)

However, *Vinokur* is distinguishable because that case involved judicial arbitration pursuant to Civil Code section 1141.11. This case involves contractual arbitration. (See generally, Defendants’ Motion to Compel Arbitration and Stay Action.) Additionally, *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399 holds that the right to trial preference does not supersede the right to arbitrate. (*Id.* at 1409-1410 [“Laswell’s advanced age and the trial court’s decision to grant her trial preference have no relevance to whether Code of Civil Procedure section 1281.2, subdivision (c) applies and, given it does not, whether to grant the petition to compel arbitration.”].)

In light of the forgoing, the Court **continues** the hearing on the motion for trial preference to August 7, 2026 at 9:00 a.m. The Court also **advances** the hearing on the motion to compel arbitration to the same date.

**Defendants are ordered to serve Plaintiff with notice of entry of this order.**

10. 9:00 AM CASE NUMBER: C25-02836

CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE

**\*TENTATIVE RULING:\***

Defendants Bay Area Legal Aid (“Legal Aid”) and Shaunita Hampton (“Hampton”, together with Legal Aid, “Defendants”) bring this demurrer to the first amended complaint (“Complaint”) of plaintiff Mofoluso Olalemi (“Plaintiff”). Defendants challenge Plaintiff’s: (1) first cause of action for professional negligence/legal malpractice; (2) second cause of action for breach of fiduciary duty; (3) third cause of action for breach of contract; (4) fourth cause of action for negligent misrepresentation; (5) fifth cause of action for violation of the violence against women act; (6) sixth cause of action for discrimination in violation of Title VI; and (7) seventh cause of action for discrimination in violation of the Fair Employment and Housing Act.

Plaintiff has not filed a formal opposition to the instant demurrer but addresses some arguments in her Complaint.

For the reasons discussed below, Defendants’ demurrer is **SUSTAINED** without leave to amend as to the cause of action asserting a Violence Against Women Act claim.

The demurrer is **SUSTAINED** with leave to amend as to the remaining causes of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

### **Meet and Confer**

The meet and confer requirement has been satisfied. (Inna Nytochka Decl., ¶ 5; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

### **Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

### **Background: Facts Alleged in Complaint**

Plaintiff filed the initial complaint in this matter on October 8, 2025. Plaintiff filed the instant Complaint on January 27, 2026.

The Complaint alleges that on July 9, 2024, Plaintiff retained Shaunita Hampton of Legal Aid for an unlawful detainer eviction Plaintiff was facing while she was residing in San Ramon. (Complaint, p. 2.) Plaintiff alleges that she entered into a retainer agreement with Hampton and Legal Aid, and the agreement stated that “BayLegal will help Client by: Will reach out to opposing counsel to communicate settlement offer. Will investigate if we can rep later.” (*Id.* at p. 3.) Plaintiff alleges that the agreement specifically provided that “If after investigating or researching the case, BayLegal believes that negotiations are warranted based on the merits of the case. BayLegal may start those negotiations on behalf of Client. Client understands that BayLegal may decide not to negotiate for Client. Client also understands that if BayLegal does negotiate for Client, BayLegal will keep Client updated about the negotiations. and BayLegal will not settle the case without Client's agreement.” (Complaint, pp. 3-4.)

There are a few issues that are repeated throughout the Complaint. The first is that Defendants “abandoned representation” of Plaintiff at an August 9, 2024 settlement conference. (Complaint, p. 9.) The second is a representation from Defendants that they would attend the “next court date” although there was no subsequent court date scheduled. (*Ibid.*) The third is the contractual clause relating to Defendants’ obligation to “reach out to opposing counsel to communicate a settlement offer,” which is alleged to have not occurred. (Complaint, pp. 3, 30.) Plaintiff also alleges that Defendants did not properly advise her on settlement issues and disability accommodations. (Complaint, pp. 18-23, 29.)

Plaintiff’s eviction was related to an inability to pay rent, which arose from being disabled, unemployed, a single mother, and a victim of domestic violence. (Complaint, p. 12.) Plaintiff seeks \$5,000,000.00 in compensatory damages, punitive damages, and emotional distress damages. (Complaint, p. 15.)

### **Judicial Notice**

The Court takes judicial notice, sua sponte, of the fully executed Stipulation and Order from Contra Costa Superior Court case no. MS24-0492 (*Shapell Norcal Rental Properties, LLC v Mofoluso Olalemi*), signed by Commissioner Yamamoto on August 9, 2024. (Code of Civ. Proc., § 452, subd. (d).)

### **Discussion**

#### **Legal Malpractice Is Not Sufficiently Pled**

To state a claim for legal malpractice a plaintiff or cross-complainant must allege facts showing: “(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney’s negligence.” (*Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP* (2010) 183 Cal.App.4th 238, 247-248 [quoting *Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1199].)

Here, Plaintiff alleges that “Defendant Shaunita Hampton and Bay Area Legal Aid Contra Costa County Regional Office had a duty to exercise the standard of care of a reasonable attorney in handling The Plaintiff’s case.” (Complaint, p. 16.) Plaintiff further alleges that “Defendant Shaunita Hampton and Bay Area Legal Aid County Regional Office breached this duty by failing to prepare for Plaintiff for the trial very well and failed to follow Plaintiff to the Court as agreed in the retainer to represent Plaintiff.” (*Ibid.*)

However, the Complaint does not allege that the retainer agreement required Defendants to prepare her for trial or follow her to court. (See generally, Complaint.) Plaintiff alleges that the retainer agreement provided that Defendants would “reach out to opposing counsel to communicate [a] settlement offer. Will investigate if we can rep later.” (Complaint, p. 3.) Plaintiff further alleges that the retainer agreement provided that “If after investigating or researching the case, BayLegal believes that negotiations are warranted based on the merits of the case. BayLegal may start those negotiations on behalf of Client. Client understands that BayLegal may decide not to negotiate for Client. Client also understands that if BayLegal does negotiate for Client, BayLegal will keep Client updated about the negotiations. and BayLegal will not settle the case without Client’s agreement.” (*Id.* at pp. 3-4.)

In light of the retainer agreement not requiring Defendants to prepare Plaintiff for trial or follow Plaintiff to court, Defendants’ demurrer to Plaintiff’s cause of action for legal malpractice is SUSTAINED with leave to amend.

#### Breach of Fiduciary Duty Is Not Sufficiently Pled

To state a claim for breach of fiduciary duty a plaintiff must plead “the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” (*Thomson v. Canyon* (2011) 198 Cal.App.4th 594, 604.) Here, Plaintiff asserts that the fiduciary duty arose by virtue of the attorney-client relationship and that Defendants

breached the fiduciary duty by “following the Court session on August 9, 2024, Plaintiff made multiple attempts to contact Defendant for essential follow-up guidance and legal counsel. Despite the urgency of the matter and Plaintiff's reasonable need for immediate attorney consultation, Defendant failed to answer or return any of Plaintiff's calls.” However, as per the retainer agreement, Defendants were only to reach out to opposing counsel to communicate a settlement offer. (Complaint, p. 3.) On August 9, 2024, a settlement was reached and became an order of the Court as it was also signed by Commissioner Yamamoto on August 9, 2024. Defendants had no remaining obligations to Plaintiff after August 9, 2024. Further, Plaintiff alleges in the Complaint Defendants’ representation of her ended on August 9, 2024, and there was a withdrawal of representation communicated to her on that date. (Complaint, p. 17.)

In light of the above, Defendants’ demurrer to Plaintiff’s cause of action for breach of fiduciary duty is SUSTAINED with leave to amend.

#### Breach of Contract Is Not Sufficiently Pled

To state a claim for breach of contract, Plaintiff must allege, “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff alleges that:

Plaintiff and Defendant entered into a contract for legal services.  
which required Defendant to provide competent representation . . .  
Defendant breached this contract by failing to fulfill her obligations  
under the agreement. . . As a result of Defendant’s breach, Plaintiff  
suffered damages, including but not limited WE BECAME  
HOMELESS, FINANCIAL LOSS, EMOTIONAL DISTRESS, ADVERSE  
LEGAL OUTCOMES.

(Complaint, p. 15.)

Here, Defendants correctly argue on page 9 of their demurrer that Plaintiff has failed to allege facts showing her performance under the contract. In light of this, Defendants’ demurrer to Plaintiff’s cause of action for breach of contract is SUSTAINED with leave to amend.

#### Negligent Misrepresentation Is Not Sufficiently Pled

“The elements of negligent misrepresentation are well established. A plaintiff must prove the following in order to recover. [M]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage...” (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792.)

“Negligent misrepresentation is a species of fraud or deceit specifically requiring a ‘positive assertion’ [citation] or ‘assertion’ [citation] of fact. [Citation.] An ‘implied’ assertion or representation is not enough.” (*Wilson v. Century 21* (1993) 15 Cal.App.4th 298, 306.) This claim must be pled with specificity. (See *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

Plaintiff alleges:

The Defendant made material misrepresentations to the Plaintiff regarding settlement negotiations and case status. Specifically, the Defendant improperly required the Plaintiff to execute documents that were the attorney’s responsibility to sign, including settlement agreements and disability reasonable accommodation requests. This delegation of the attorney’s duties to the client resulted in opposing counsel treating the Plaintiff's case documentation as lacking credibility and legal weight.

The Defendant Shaunita Hampton made false representations of fact to the Plaintiff, unacceptable and unprofessional statements about settlement offers and case status. She made Plaintiff to sign all the document that she was supposed to sign like the settlement terms, THE DISABILITY REASONABLE ACCOMMODATION which resulted in the plaintiff lawyer not to take My case documentation serious and Valuable. The Defendant’s breach of reasonable communication with her Client: she failed to answer or return any of Plaintiff calls. This demonstrated a disregard for her duty to maintain reasonable communication with her client. The Defendant's breach of fiduciary duty was a direct and proximate cause of the Plaintiff's damages. The Defendant’s conduct was outrageous and caused the Plaintiff severe emotional distress.

The Defendant knew of should have known that these

representations regarding the settlement agreement were false or misleading. Specifically, when the opposing counsel rejected her settlement proposal and proceeded with their own terms, and I mentioned to her that the opposing counsel rejected my own terms that she wrote for me, and she never said anything about it. It became evidence that Defendant's prior representations about the settlement process and likely outcomes were inaccurate.

(Complaint, pp. 17-18.)

Defendants argue that Plaintiff's allegations fail to describe any specific misrepresentations, and to the extent they do, they concern future events. (Demurrer, pp. 9-10.)

After evaluating Plaintiff's allegations in support of her negligent misrepresentation claim, none of Plaintiff's allegations can properly be described as misrepresentations about past or existing material facts alleged with specificity.

In light of this, Defendants' demurrer to Plaintiff's cause of action for negligent misrepresentation is SUSTAINED with leave to amend.

#### FEHA Discrimination Is Not Sufficiently Pled

The Fair Employment and Housing Act ("FEHA") prohibits discrimination in employment and housing. (Gov. Code, §§ 12926, 12940.) As Defendants point out, there are no allegations in the Complaint to support that Defendants were employers of Plaintiff or provided her with housing. (Demurrer, p. 10; *see generally*, Complaint.)

In light of this, Defendants' demurrer to Plaintiff's cause of action for FEHA discrimination is SUSTAINED with leave to amend.

#### Violence Against Women Act Is Not Sufficiently Pled

Defendants argue that there is no private right of action under the Violence Against Women Act. (Demurrer, p. 11.) It is true that the United States Supreme Court has held that the civil remedy provisions of the Violence Against Women Act were not properly enacted by Congress and are thus unenforceable. (*United States v. Morrison* (2000) 529 U.S. 598, 627.)

In light of this, Defendants' demurrer to Plaintiff's cause of action for violation of the

Violence Against Women Act is SUSTAINED without leave to amend.

Title VI Discrimination Is Not Sufficiently Pled

To state a claim under Title VI, a plaintiff must allege the defendant entity is engaged in prohibited discrimination and is involved in receiving federal financial assistance. (See *Joseph v. Boise State Univ.*, (D. Idaho 2024) 998 F.Supp.2d 928, 944.) Defendants argue that Plaintiff has failed to plead any facts showing that they intentionally discriminated against her based on any protected characteristics. (Demurrer, p. 11.) Plaintiff asserts that the discrimination is satisfactorily alleged, in that she alleged that Hampton told her that she had “no legal counsel” for Plaintiff and abruptly terminated a phone call during Plaintiff’s issue conference on August 9, 2024, and that Defendants “complete failure to provide services promised in the retainer agreement, combined with affirmative misrepresentations about attending court proceedings, demonstrates treatment that falls below the standard BayLegal provides to other clients.” (Complaint, p. 35.)

The Court agrees with Defendants that the allegations Plaintiff has asserted do not show discrimination on the part of Defendants.

In light of this, Defendants’ demurrer to Plaintiff’s cause of action for Title VI Discrimination is SUSTAINED with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendants’ demurrer to the cause of action asserting a Violence Against Women Act claim without leave to amend. The Court **SUSTAINS** Defendants’ demurrer to the remaining causes of action with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-02836  
CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE  
\*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT  
FILED BY: MOFOLUSO OLALEMI AND FAMILY  
\*TENTATIVE RULING:\*

This motion is denied as moot as Defendants’ demurrer is SUSTAINED in full. See Line 10 above.